

Torts
Dougherty v. Stepp
18 N.C. 371 (1835)

Keyword Subject

Trespass to Land

Facts

Plaintiff owned a piece of land that Defendant tried to survey. Defendant entered the land with a surveyor and chain carriers and tried to claim it as his own

Procedural History

Trial Court: In favor of Defendant

Appeal: In favor of Plaintiff (Reversed and Remanded)

Issue

Can a tort for Trespass to Land hold if there was no damage done beyond the "treading down [of] the grass?"

Holding: Yes; Reversed and Remanded

Principle

Reasoning

Separate Opinions

Notes